

Court No. - 34

Case :- WRIT - C No. - 20930 of 2020

Petitioner :- Satish Chandra And Another

Respondent :- Union Of India And 4 Others

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Jayant Banerji,J.

The present writ petition has been filed with a prayer to issue a writ of mandamus commanding the respondent No.2 to hold proceeding of Section 126 of the Electricity Act, 2003 ultra virus to the provision of Article 20(2) of the Constitution of India which guarantees protection against double jeopardy.

The other prayers made in the writ petition read as under:-

(ii) Issue a writ, order or direction in the nature of mandamus commanding respondent No. 3 to consider the proposal in paragraph No. 23(ii), (viii), (ix),(x),(xi) of petition pending before the respondent No. 3 (Annexure 11) and impart the suggestion in the amended Supply Code.

(iii) Issue a writ, order or direction in the nature of mandamus commanding respondent No.2 to rectify the inconsistency in between the Section 126, 153, 154 (5), 154(6) and in between Section 127(4) and 154(6) of electricity Act, 2003 and in Clause 8.2 (x)(g), 8.2(x) (h) & 8.0(4) of the U.P. Electricity Supply Code, 2005 and to fix time frame for determination of Criminal and civil liability U/s 154(5) of Electricity Act, 2003.

(iv) Issue a writ, order or direction in the nature of mandamus commanding respondent No. 4 to energize the electricity line of petitioner No.1.

A perusal of the record indicates that the petitioner No.1 had earlier filed Writ Petition No. 26649 of 2019 with a prayer to issue a mandamus to the respondent to quash the order dated 22.7.2019, whereby his representation has been rejected. However, an interim order was passed on 16.9.2019 in the said writ petition staying effect and operation of the order dated 22.7.2019, subject to condition that the petitioner shall deposit a sum of Rs. 6,00,000/ within a period of three weeks from the date of the order.

It is submitted by the learned counsel for the petitioner that the petitioners has complied with the interim order passed by this Court.

The order dated 22.7.2019 is not on record. In essence, the dispute being raised in the present writ petition is subject matter

of consideration in the pending Writ Petition No. 26649 of 2019. The prayer No. 4 made in the writ petition to energize the electricity line of the petitioner No.1 being consequential prayer cannot be adjudicated.

With regard to other prayers made in the writ petition, in the considered opinion of this Court, the same have been made only to maintain the present writ petition during the pendency of the previous writ petition.

We, therefore, dismiss the writ petition being misconceived with a cost of Rs. 15,000/(fifteen thousand), which shall be deposited by the petitioners within a period of two weeks from today before the Registrar General of this Court. The cost so deposited shall be transmitted in the account of the High Court Legal Services Committee.

Order Date :- 7.12.2020

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